

25STCV02466 25STCV02466

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-14

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Case Number: 25STCV02466 Hearing Date: September 14, 2026 Dept: 309

Superior

Court of California

County

of Los Angeles

DEPARTMENT 309

TENTATIVE RULING

CS

GENERAL CONTRACTING, INC.

vs.

KURT

V. JOSE et al.

Case No.: 25STCV02466

Hearing

Date: September 14, 2026

Plaintiff's

motion to compel Defendant Kurt Jose to produce documents responsive to its

Requests for Production is GRANTED. Responses due within 20 days. Defendant is sanctioned, jointly and severally with counsel, \$700.00.

On 1/29/2025,

Plaintiff CS General Contracting, Inc. (Plaintiff) filed suit against Kurt V. Jose and Edel M. Jose (collectively, Defendants), alleging: (1) breach of contract; (2) foreclosure of mechanic's lien; (3) quantum meruit; and (4) account stated.

On

6/6/2025, Kurt and Edel Jose (collectively, Cross-Complainants) filed a cross-complaint (XC) against CS General Contracting, Inc., Timonthy Kaipo Aiu, and Hudson Insurance Company, alleging: (1) breach of written contract; (2) breach of express warranty; (3) breach of implied warranty; (4) negligence; (5) disgorgement; (6) unfair business practices; and (7) recovery on a surety bond.

On 8/20/2026,

Plaintiff moved to compel Defendant Kurt Jose to produce documents responsive to its Requests for Production (RFPs).

The

motion is unopposed.

Discussion

On

5/13/2026, Plaintiff served an initial set of RFPs on both Defendants.

Defendant Kurt Jose responded to the RFPs, essentially stating he would produce date-stamped documents responsive to the requests. However, to date, no documents have been produced.

Kurt

Jose did not oppose this motion, and thus has not offered any substantial justification for this failure.

Based

on the foregoing, Plaintiff's motion to compel Defendant Kurt Jose to produce documents responsive to its Requests for Production is granted. Defendant is sanctioned, jointly and severally with counsel, \$700.00 (\$350/hr x 2 hr).

It is so ordered.

Dated: September

, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.